

Equivalent Citations

citation codes .

DR RAKESH R MENON v. DEPARTMENT OF SPACE

Central Administrative Tribunal (Aug 6, 2025)

CASE NO.

R.A./25/2025

CENTRAL ADMINISTRATIVE TRIBUNAL**ERNAKULAM BENCH****R.A No.180/0025/2025in****O.A No.180/00278/2025**Wednesday, this the 6th day of August, 2025.**CORAM:****HON'BLE Mr. JUSTICE SUNIL THOMAS, JUDICIAL MEMBER HON'BLE****Mrs. V. RAMA MATHEW, ADMINISTRATIVE MEMBER**

Dr. Rakesh R. Menon, aged 47 years, S/o K. Radhakrishna Menon, residing at CRA-133, TC 8/243 [New TC/35/1376(1)], Vazhottukonam, Vattiyoorkavu, Thiruvananthapuram - 695 013, Currently working as Deputy Registrar (Grade-I), Indian Institute of **Space** Science and **Technology** (IIST), Valiamala P.O, Thiruvananthapuram - 695 547 - **Review Applicant [By Advocate :Ms. Jinu Antony]**

Versus

1. Union of India represented by its Secretary, Department of **Space**, Antariksh Bhavan, New BEL Road, Bangalore - 560 231.
2. Secretary, Department of **Space** and ISRO HQ Antariksh Bhavan, New BEL Road, Bangalore - 560 231.
3. Indian Institute of **Space** Science and **Technology** represented by its Registrar, Department of **Space**, Government of India, Valiamala, Thiruvananthapuram - 695 547.
4. The Vice Chancellor and Chairman- Grievance Redressal Committee Indian Institute of **Space** Science and **Technology**, Department of **Space**, Government of India, Valiamala, Thiruvananthapuram-695547
5. The Registrar, Indian Institute of Science and **Technology**, Department of **Space**, Government of India, Valiamala, Thiruvananthapuram - 695 547. -**Respondents**
[By Advocate : Mr. Thomas Mathew Nellimoottil, SPC]

The Review Application having been heard on 06.08.2025, the Tribunal on the same day delivered the following:

ORDER (Oral):-

Per: Justice Sunil Thomas, Judicial Member

Annexure RA-1 order passed by this Tribunal, at the time of admission is sought to be reviewed. The relevant part of the order is essential for consideration of the Review Application is as follows:

"...We find that no decision has been taken till now. Having regard to this, there will be direction to the respondents to consider the grievances of the applicant in Annexure A-8 and A-9 and pass order subject to the availability of post, during the currency of Annexure A-6 panel..."

2. The order is sought to be reviewed by the applicant on the premise that the direction contained in RA-1 to the extent of directing the respondents to pass orders subject to the availability of post is a patent illegality in the light of clause 2.3.1 of Annexure A-7 bye law.

3. Our attention has been drawn to clause 2.3.1 of Annexure A7 which reads as follows:

"...The Institute will adopt and follow its own Limited Flexible Complementing Scheme (FCS) wherein the individuals will be reviewed and promoted on individual merit without reference to availability of higher vacancies. The growth will be capped in the following manner..."

4. Evidently, the scheme LFCS is not clubbed with the number of available vacancies. Having heard the learned Counsel for the review

applicant and the learned SPC, we are satisfied that prescribing a condition that the order shall be passed "subject to the availability of post" is contrary to relevant provision of bye law. Patently, there is an error apparent on the face of record, which is not in tune with clause 2.3.1.

5. Accordingly, RA is allowed. The order in RA-1 to the extent directing "subject to the availability of post" will stand deleted. Issue modified order, on returning of the earlier order.

(Dated, this the 6th day of August, 2025)

V. RAMA MATHEW JUSTICE SUNIL THOMAS

ADMINISTRATIVE MEMBER JUDICIAL MEMBER

List of Annexure in R.A/25/2025 Annexure RA1- True copy of the interim order dated 30.07.2025 in OA No.278 of 2025.
